

Code of Civil Procedure section 439, subdivision (a), requires the party intending to file a motion for judgment on the pleadings to meet and confer with the party whose pleading is being challenged “**in person, by telephone, or by video conference**” prior to filing the motion for judgment on the pleadings. In addition to this, a party may satisfy this requirement when the party who filed the pleading subject to the motion “failed to respond to the meet and confer request of the moving party. . . .” (*Ibid.*) The moving party must then file a declaration with the motion attesting to the party’s compliance with the meet and confer requirement. (*Ibid.*) Courts have wide discretion to continue hearings to order further meet and confer efforts to take place. (See *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 3 [“Of course, trial courts are not required to ignore defects in the meet and confer process. If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.”].)

The Stephen A. Horner Declaration does not state the parties met and conferred in the manner required by the Code of Civil Procedure. (Horner Decl. ¶¶ 1-2 and Exh. 1.) The letter sent by Defendant’s counsel does not request to meet and confer, as nowhere does the attorney ask the party whose pleading is being challenged to schedule a call, videoconference, or meeting, or offer available dates to conduct such a conference. (See Horner Decl., Exh. 1 [8/11/2025 letter stating, “If you would like to discuss further, please let me know so that we can schedule a phone call” and “Please respond and indicate whether the complaint will be amended.”].) Inviting the plaintiffs’ counsel to contact Defendant’s counsel “if” that counsel “would like to discuss” the Motion does not meet the letter or spirit of the meet and confer requirement of Code of Civil Procedure section 439, subdivision (a). The hearing is therefore continued for the parties to meet and confer pursuant to the statute.

4. 9:00 AM CASE NUMBER: C24-02350
CASE NAME: LAMONT ROBINSON VS. GREG MUNRO
***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT**
FILED BY: ROBINSON, LAMONT
TENTATIVE RULING:

Plaintiff Lamont Robinson’s motion for leave to file a first amended complaint is **granted**, subject to the conditions below. Among the amendments, Plaintiff Lamont Robinson is removed from the complaint and replaced with Plaintiff Andrea Smith.

Motion

Plaintiff is suing for various business and landlord-tenant related torts. In the original complaint, Plaintiff alleges that he purchased the business, Keep You Neat cleaners, from Defendant Saucedo in March 2023. Saucedo would work as an employee of the business. As part of this deal, Plaintiff assumed the lease where the business was located. Plaintiff also alleged the Greg Munro was the landlord of the building where the business was located.

In September 2023, a rodent and insect problem was discovered at the property. Plaintiff hired a company to help with the rodent problem and requested a rent reduction from Munro. In January 2024, there was a water leak in the ceiling of the building. Plaintiff again requested a rent reduction because of the water leak. In March, Munro changed the locks on the property without giving Plaintiff access. Also in March, Munro sent Plaintiff a text message giving Plaintiff 3 days to pay rent or quit. No written 3-day notice was mailed or posted. Munro changed the locks a second time and chained the doors to the property shut.

In this motion, Plaintiff seeks to replace Plaintiff Lamont Robinson with Andrea Smith. Plaintiff also seeks to add some new factual allegations, but the causes of action remain the same. Plaintiff's attorney explains that he initially thought Robinson was the owner and CEO of Keep You Neat Cleaners. But in March 2024, after the complaint was filed, Keep You Neat Cleaners updated its Statement of Information and it now lists Andrea Smith as the sole officer and director.

There is "a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations]..." (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487.) Leave to amend can be denied where there is " 'inexcusable delay and probable prejudice to the opposing party' ... [Citation.]" (*Ibid*; see also, *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 (even assuming there is unreasonable delay, "it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.")). Prejudice is most often found when amendments are requested late in the case. (*Magpali, supra*, 48 Cal.App.4th at 475 [leave to amend requested on eve of trial]; *Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 175 [leave to amend to add new claim requested at hearing on summary judgment motion].)

Here, Plaintiff seeks to replace the plaintiff named in the complaint. Code of Civil Procedure section 473(a)(1) allows a party to amend the complaint, including "adding or striking out the name of any party". Further, named plaintiffs are sometimes replaced in a case. (See, *Shapell Industries, Inc. v. Superior Court* (2005) 132 Cal.App.4th 1101, 1109.)

Defendant Greg Munro opposes this motion. He argues that there was inexcusable delay and that he will be prejudiced by the amendments.

There is no indication when Plaintiff discovered that Andrea Smith was now listed on the corporate forms, but presumably the former owner and CEO, Robinson, would know of a change in ownership on the day it occurred. Here the corporate ownership change was filed on March 8, 2024. This motion was not filed until October 28, 2025. There has been no explanation for the year and half delay in bringing this motion. The Court finds that there is inexcusable delay here.

The bigger issue, however, is whether there is prejudice to the Defendants. Defendant Saucedo does not oppose this motion. Munro, however, argues that the amendments will prejudice him.

Munro argues that the discovery he has already propounded will be useless and trial. Plaintiff

responds that the factual issues are the same and they are just replacing the named plaintiff. The Court agrees that the old discovery responses will not be useful at trial against a newly named plaintiff and thus, there has been a waste of attorney time here. But there is no trial date and there is therefore sufficient time to conduct further discovery and motion practice.

Munro also argues that he will have to respond to the new complaint, which will require an amended pleading, renewed meet and confer efforts and potentially additional motion practice. Additional work often occurs after a complaint is amended and is not sufficiently prejudicial to deny a motion for leave to amend.

Munro argues that if KYNC is substituted as the Plaintiff, the scope of the discovery will be significantly broader than if the named Plaintiff was an individual. The main factual allegations and causes of action have stayed the same. Adding new theories or clarifying a parties' standing do not cause the type of prejudice sufficient to deny a motion for leave to amend without additional facts, such as making the amendments on the eve of trial.

Munro also objects to new legal theories being introduced 17 months into the case, arguing it will undermine his legal strategies. Adding new legal theories before trial has been set and before any motions for summary judgment or adjudication have been filed does not prejudice Munro.

Overall, the Court finds that Munro has not shown sufficient prejudice to justify denying leave to amend here. The Court recognizes, however, that the year and half delay in bringing this motion has caused additional expenses to Munro. The Court may condition granting leave to amend on "any terms as may be proper." (Code of Civil Procedure section 473(a)(1).)

Munro also requests that the amendment be limited to substituting a new plaintiff and not allowing for other changes in the complaint. Munro also asks for \$6,000 in attorney fees to compensate for various work done by Munro's attorney that will have to be redone. The Court finds that \$1,000 in attorney fees plus amended discovery responses from the new plaintiff will sufficiently address Munro's concerns.

Defendant Magdalena Saucedo does not oppose the motion as long as Saucedo is not required to file an answer to the FAC or amend her cross-complaint. In reply, Plaintiff agrees that Saucedo need not modify her pleadings. Based upon these statements, the Court finds that Saucedo is not required to file a new answer to the FAC. That being said, the Court cannot make the same findings as to the cross-complaint. Saucedo may keep the cross-complaint as is, which names Robinson as a defendant. Alternatively, she may file an amended cross-complaint to remove Robinson and add Smith. But for clarity in the record, the Court cannot deem the cross-complaint responsive to the FAC.

Conditions

The Court imposes the following conditions as part of giving Plaintiff leave to amend the

complaint:

- 1) Saucedo's answer to the complaint will be deemed an answer to the first amended complaint.
- 2) Saucedo is given leave of court to file an amended cross-complaint by March 30, 2026.
- 3) Plaintiff Andrea Smith shall pay Defendant Greg Munro \$1,000 within 30 days.
- 4) Plaintiff Andrea Smith shall serve amended verified discovery responses to all discovery previously responded to by Robinson within 30 days.

5. 9:00 AM CASE NUMBER: C24-02966
CASE NAME: YUE REN VS. GAUTAM PATIL
***HEARING ON MOTION IN RE: MOTION TO STRIKE DEFT CROSS-COMPLAINT**
FILED BY:
TENTATIVE RULING:

In light of Cross-Complainant filing a First Amended Cross Complaint, the Demurrer and Motion to Strike the original Cross-Complaint are moot.

6. 9:00 AM CASE NUMBER: C24-02966
CASE NAME: YUE REN VS. GAUTAM PATIL
HEARING ON DEMURRER TO: DEFT CROSS-COMPLAINT
FILED BY:
TENTATIVE RULING:

In light of Cross-Complainant filing a First Amended Cross Complaint, the Demurrer and Motion to Strike the original Cross-Complaint are moot.

7. 9:00 AM CASE NUMBER: C24-03076
CASE NAME: DEJA JONES VS. JOHN MUIR HEALTH
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO JOHN MUIR HEALTH'S FORM INTERROGATORIES, SET ONE**
FILED BY: JOHN MUIR HEALTH
TENTATIVE RULING:

Defendant John Muir Health (JMH) moves to compel further responses from Plaintiff Deja Jones to Form Interrogatories, Set One. The motion exclusively addresses Plaintiff's failure to submit anything beyond boilerplate objections to Form Interrogatory 17.1, which seeks factual bases for denials of JMH's Requests for Admission. JMH filed its motion on September 22, 2025. On February 20, 2026, Jones filed a declaration demonstrating that she had, as of October 8, 2025, served supplemental responses to the Interrogatory in question. JMH has many questions regarding the identity of various potential plaintiffs and "nominal defendant." JMH still complains that Plaintiff's responses are insufficient, lacking the requisite detail to comply with requirements.